

SUPERIOR COURT OF CALIFORNIA
COUNTY OF SAN FRANCISCO
UNIFIED FAMILY COURT

KRISTEN MCHALE,

Petitioner

VS.

ANDREW MCHALE,

Respondent

) Case Number: FDI-25-801992

) Hearing Date: June 18, 2026

) Hearing Time: 9:00 AM

) Department: 403

) Presiding: BOBBY P. LUNA

REQUEST FOR ORDER RE: CHANGE OF SPOUSAL OR PARTNER SUPPORT, ATTORNEY'S
FEES AND COSTS, ARREARS, AND A PRELIMINARY DISTRIBUTION OF COMMUNITY
PROPERTY FUNDS

TENTATIVE RULING

Having read and considered the pleadings, declarations, and other evidence submitted in this matter, the
Court makes the following findings and orders:

A. Procedural History

1) The parties are Petitioner Kristen McHale (Wife) and Respondent Andrew McHale (Husband).

They share two adult children; there are no minor children subject to this proceeding.

2) On 9/30/25, Wife filed a Petition for Dissolution indicating the date of marriage is 10/24/99 and
date of separation is 9/3/25 for a marriage of 25 years and 10 months.

3) On 10/15/25, Husband filed a Response and Request for Dissolution indicating the date of
marriage is 10/24/99 and date of separation is 9/3/25 for a marriage of 25 years and 10 months.

4) On 12/15/25, the parties filed a Stipulation and Order, which provides the following relevant
provisions:

- a. Wife to have temporary exclusive possession of the parties' property in Healdsburg and
Husband to have temporary exclusive possession of the parties' property in San Francisco
(see section 1).

- b. A \$20,000 advancement of community funds to both parties (see section 3).
 - c. Husband to pay Wife \$10,006 per month in temporary spousal support commencing 10/1/25 in accordance with an attached XSpouse report (see section 4).
 - d. Husband to pay Wife Smith/Ostler bonus support on income earned in excess of his \$38,480 monthly base salary (see section 5).
 - e. Credits to Husband for payments made to or on behalf of Wife (see section 6).
 - f. Reservation of jurisdiction on support retractive to 9/30/25 (see section 7).
 - g. Appointment of a joint neutral forensic expert, Natalie McFarlin, CPA (see section 13).
- 5) On 2/20/26, Wife filed a Request for Order seeking modification of temporary spousal support to guideline, enforcement of payment of spousal support arrears, \$50,000 in Family Code section 2030 attorney's fees and costs, and an advancement of community property funds.
 - 6) On 2/20/26, Wife file an attorney declaration substantiating her request for \$50,000 in Family Code section 2030 attorney's fees.
 - 7) On 2/20/26, Wife filed an Income and Expense Declaration.
 - 8) On 4/2/26, the Court entered an earnings assignment order for \$10,006 in monthly spousal support.
 - 9) On 4/17/26, Husband filed a Request for Hearing Regarding Earnings Assignment.
 - 10) On 6/3/26, Wife filed a Responsive Declaration in opposition to Husband's Request for Hearing Regarding Earnings Assignment.
 - 11) On 6/4/26, Husband filed a Responsive Declaration in opposition to Wife's Request for Order filed 2/20/26. Husband requests the Court permit the sale of the parties' property in Healdsburg, where Wife resides, under Family Code section 2032(d).
 - 12) On 6/4/26, Husband filed an Income and Expense Declaration.
 - 13) On 6/4/26, Husband filed Declaration of Dima Brodskiy.
 - 14) On 6/10/26, Husband filed a Reply Declaration regarding his Request for Hearing Regarding Earnings Assignment.
 - 15) On 6/11/26. Wife filed a Reply Declaration regarding her 2/20/26 Request for Order. Wife opposes the sale of the property in Healdsburg until the parties have a complete report form their joint expert, Natalie McFarlin, CPA.

16) On 6/15/26, Husband filed a vocational evaluation for Wife.

B. Findings and Order

1) A spousal support modification may be granted only upon a showing of material change in circumstances. See *Marriage of West* (2007) 152 CA4th 240, 246.

2) A material change in circumstances is required even if the current order was established by stipulation. See *Marriage of McCann* (1996) 41 CA4th 978, 982.

3) Here, the parties stipulated to a temporary spousal support order wherein Husband is ordered to pay Wife \$10,006 per month effective 10/1/25. See Stipulation and Order file dated 12/5/25.

4) The Court finds Wife did not sufficiently establish a material change in circumstances warranting modification of this Stipulation and Order as it is undisputed that Husband's monthly income remains the same.

5) The Court declines to impute any income to Wife at this time; therefore, Husband's request for imputation of income to Wife is DENIED without prejudice.

6) The Court will not amend the earnings assignment order; however, the Court confirms that Husband is under no obligation to pay the mortgage or carrying costs on the Healdsburg property.

7) The Court reserves jurisdiction over Wife's requests for unpaid arrears and Smith/Ostler bonus support. The Court has insufficient information to calculate what is owed in part because the parties agreed to meet and confer regarding credits to Husband for payments made to or on behalf of Wife. The parties are encouraged to continue to meet and confer regarding this issue.

8) Wife's request for an additional advancement of community property funds is DENIED.

9) Wife's request for Family Code section 2030 attorney's fees is GRANTED in the amount of \$25,000 subject to reallocation. The Court finds a disparity in income and ability to pay for legal representation between the parties. The Court further finds that Husband is reasonably likely to have the ability to pay for legal representation for both parties and \$25,000 in attorney's fees and costs are reasonable and necessary. Husband shall pay half this balance by 7/18/26 and half this balance by 8/16/26.

10) Husband's request to compel the sale of the Healdsburg property is DENIED without prejudice.

11) The Court encourages the parties to meet and confer to attempt to reach a global settlement. Once the report from joint neutral forensic expert, Natalie McFarlin, CPA is completed, either party

1 may file an At-Issue Memorandum for a Status Conference at which time they can request a
2 Judicial Settlement Conference for the purpose of resolving all financial issues.

3 12) Counsel for Wife shall prepare the Findings and Order After Hearing.

4 13) **Preparation of Order:** If you are directed by the court to prepare the order after hearing – within
5 10 calendar days of the hearing you must either: (a) Serve the proposed order to the other
6 party/counsel for approval, and follow the procedures set forth in CA Rules of Court, Rule
7 5.125(c), or (b) If the other party did not appear or the matter was uncontested, submit the
8 proposed order after hearing directly to the court. Failure to submit the order after hearing within
9 10 days may allow the other party to prepare a proposed order and submit it to the court in
10 accordance with CA Rules of Court, Rule 5.125(d).